

Murder Reference No.163/2022

J U D G M E N T

Date of hearing:	30.06.2025
Appellant by:	i). Malik Ishrat Hussain, Advocate along with Mr. Maqbool Ahmad Qureshi, Advocate. ii). Mr. Muhammad Tariq Sukhera, Advocate/Defence Counsel at State expense.
State by:	Ms. Nuzhat Bashir, Deputy Prosecutor General along with Jahangir, ASI.
Complainant by:	Nemo for the complainant {learned Deputy Prosecutor General under instructions of police official (present in Court) and after herself going through the record apprises that Babar Tariq (complainant of the case) has been duly served with notice regarding pendency of instant appeal for today before this Court however he has not come to the Court}.

FAROOQ HAIDER, J.:- This single judgment will dispose of **Crl. Appeal No.39441-J/2022** filed by Muhammad Arif (appellant) against his “convictions & sentences” and **Murder Reference No.163/2022** sent by trial court, as both the matters have arisen out of one and the same judgment dated: 31.05.2022 passed by learned Addl. Sessions Judge, Lahore/trial court.

2. Muhammad Arif (appellant) was tried in case arising out of F.I.R. No.967/2019 dated: 27.08.2019 registered under Sections: 302, 324 PPC (offences under Sections: 337 F(iii), 337 F(vi) PPC were added subsequently) at Police Station: Ghaziabad, Lahore; trial court after conclusion of the trial *vide* impugned judgment dated: 31.05.2022 has convicted and sentenced the appellant as under: -

<u>Convictions</u>	<u>Sentences</u>
<u>Under Section:</u> 302(b) PPC	“ Death ” as <i>Taz’ir</i> (for committing <i>Qatl-e-Amd</i> of Muhammad Dilawar) with payment of compensation Rs.5,00,000/- to the legal heirs of the deceased under Section: 544-A Cr.P.C. recoverable as arrears of land revenue and in default of payment of compensation amount to further undergo S.I. for six months.
<u>Under Section:</u> 324 PPC	“ Seven Years’ Rigorous Imprisonment ” (for an attempt to commit <i>Qatal-e-Amd</i> of Babar Tariq/injured) with fine of Rs.10,000/- and in default thereof to further undergo S.I. for six months.

<u>Under Section:</u> 337 F (iii) PPC	“Three Years’ Rigorous Imprisonment” (for causing hurt on the person of Babar Tariq/injured) with payment of “Daman” amounting to Rs.50,000/-.
<u>Under Section:</u> 337 F (vi) PPC	“Five Years’ Rigorous Imprisonment” (for causing hurt on the person of Babar Tariq/injured) with payment of “Daman” amounting to Rs.100,000/-. Appellant/convict was further directed to pay compensation under Section: 544-A Cr.P.C. amounting to Rs.100,000/- to Babar Tariq/injured.

It was directed that appellant would be kept in jail till payment of amount of Daman to Babar Tariq (injured of the case); all the sentences were ordered to run concurrently and benefit of Section: 382-B Cr.P.C. was also extended in favour of the appellant.

3. Brief facts, as per *Fard Bian*/statement made by Babar Tariq (complainant/PW-4) to Ruman Iqbal, T/S.I. of Police Station: Ghaziabad, Lahore (PW-9) for registration of the case are that he is resident of House No.34 Street No.64, Mohallah Tanvirabad, Ghaziabad, Lahore and does work of ceiling whereas his elder brother Dilawar, aged about 25-years, does work of electrician and their uncle/*chacha* Arif son of Badar-ud-Din is residing with them in their house; father of the complainant has passed away six years ago and uncle/*chacha* Arif is living with them in the same house; uncle/*chacha* Arif started quarreling since some time with mother of the complainant Farzana Kausar widow of Tariq (deceased) for selling the house and giving him his share; said house was in the name of paternal grandfather of the complainant Badar-ud-Din and after his death, paternal grandmother of the complainant Mukhtaran Bibi, who was yet alive, had been opposing selling of the house till marriage of sisters of the complainant namely Kiran Shahzadi and Iram Shahzadi; complainant and others also have been making uncle/*chacha* Arif to understand to let them get their sisters married and thereafter his share would be given to him while selling the house; marriage of sister of the complainant Iram Shahzadi was going to be solemnized after two months but uncle/*chacha* Arif remained adamant for selling the house immediately and giving him his share otherwise to face physical/body loss; on 27.08.2019 at about 01:00 p.m., complainant along with his elder brother Dilawar son of Tariq, mother Farzana Kausar, sisters Kiran Shahzadi and

Iram Shahzadi was present in the room in their house; suddenly uncle/*chacha* Arif armed with pistol entered in their room and raised *lalkara* to teach them a lesson for not giving share from the house; elder brother of the complainant Dilawar stepped forward and prohibited him from doing so, upon which, uncle/*chacha* Arif fired straight shots with pistol with intent to kill him, which hit below his umbilicus, who fell down in injured condition; complainant stepped forward to catch hold of uncle/*chacha* Arif, whereupon he also fired straight shots with pistol at the complainant with intent to kill him, which landed at his left leg and left wrist; on hue and cry of mother of the complainant Farzana Kausar and sisters Kiran Shahzadi and Iram Shahzadi, uncle/*chacha* Arif fled away from the spot; brother of the complainant succumbed to the injuries at the spot whereas he (complainant) was shifted to Services Hospital for treatment; besides the complainant, occurrence was witnessed by mother of the complainant Farzana Kausar and sisters Kiran Shahzadi and Iram Shahzadi.

On the basis of aforementioned *Fard* Bian/statement (Ex.PA), F.I.R. (Ex.PD) was chalked out by Mian Muhammad Aqeel T/ASI (PW-11).

4. After completion of investigation, challan report under Section: 173 Cr.P.C. was submitted in the Court against the appellant by placing his name in column No.3 of the same; appellant was formally charge sheeted, however, he pleaded not guilty and claimed trial whereupon prosecution evidence was summoned; after recording of prosecution evidence, appellant was examined under Section: 342 Cr.P.C. but he refuted the allegations levelled against him; he neither opted to appear as his own witness under Section 340(2) Cr.P.C., nor produced any evidence in his defence. Trial court after conclusion of trial has convicted and sentenced the appellant as mentioned above through the impugned judgment dated: 31.05.2022.

5. Learned counsel for the appellant has submitted that convictions recorded against and sentences awarded to the appellant through impugned judgment are against the 'law and facts' and result of non-reading/misreading of evidence, therefore, same are not sustainable in the eyes of

law. Learned counsel for the appellant finally prayed for acquittal of the appellant.

6. Conversely, learned Deputy Prosecutor General has supported the impugned judgment and prayed for dismissal of the appeal.

7. **Arguments heard. Record perused.**

8. It has been noticed that as per case of prosecution, occurrence in this case took place on 27.08.2019 at 01:00 p.m. whereas FIR (Ex.PD) was registered at 04:15 p.m. As per statement of Babar Tariq (complainant/PW-4), his elder brother Muhammad Dilawar was murdered in this case and complainant himself also received firearm injuries during the occurrence, who was taken to Services Hospital, Lahore for treatment and on his statement (Ex.PA) recorded in the hospital by Ruman Iqbal, T/S.I. (PW-9), FIR (Ex.PD) was recorded by Mian Muhammad Aqeel, T/ASI (PW-11) at 04:15 p.m. on 27.08.2019. It is natural phenomenon that generally efforts are made on priority basis to firstly shift injured persons to the hospital in order to save their lives and then to report the matter to the police. In such peculiar facts and circumstances of instant case, there is no undue delay in registration of the case.

Ocular account in instant case comprises of Babar Tariq (injured of the case/complainant/PW-4), Farzana Kausar (PW-1), Iram Shahzadi (PW-2) and Kiran Shahzadi (PW-3). Parties are closely related to each other as appellant is real uncle/*chacha* of the complainant as well as of Iram Shahzadi and Kiran Shahzadi. Complainant and other prosecution witnesses (mentioned above) as well as the appellant were residing in one and the same house where this occurrence took place in broad daylight, hence Babar Tariq (injured of the case/complainant/PW-4), Farzana Kausar (PW-1), Iram Shahzadi (PW-2) and Kiran Shahzadi (PW-3) were natural witnesses of the occurrence.

In above scenario, there is no question of misidentification of the appellant; any cogent and plausible reason to falsely implicate the appellant by Babar Tariq (complainant/PW-4) and other eye witnesses in this case could not come on the record and in such circumstances, substitution of the real culprit is rare phenomenon in our society; case of **“IRSHAD AHMAD**

and others versus The STATE and others” (PLD 1996 Supreme Court 138) can be advantageously referred on the subject, relevant portion from page No.143 of the same is as under:-

“Undoubtedly, the substitution is a phenomenon of rare occurrence, because even the interested witnesses would not normally allow the real murderers of their relation to escape by involving innocent persons.”

Guidance on the subject has also been sought from the cases of “**SAJID MEHMOOD versus The STATE**” (2022 SCMR 1882), “**AZHAR HUSSAIN and another versus The STATE and others**” (2022 SCMR 1907) and “**NASIR AHMED versus The STATE**” (2023 S C M R 478).

Babar Tariq (complainant/PW-4), Farzana Kausar (PW-1), and Kiran Shahzadi (PW-3) deposed regarding aforementioned facts i.e. detail of the occurrence as well as vital aspects of the case of prosecution during trial of the case in straightforward manner and remained consistent during recording of their evidence, neither their credit could be impeached nor evidentiary value of their testimony could be minimized inspite of searching cross-examination by defence rather their evidence has been found as confidence inspiring, truthful and thus reliable.

Iram Shahzadi while appearing as PW-2 during trial before the court stated that she went to the washroom for taking shower where she heard the fire shots and when she came out of the washroom after sometime, saw the accused fleeing away from the spot while armed with pistol and in this manner, though she did not claim herself as eye witness yet did not depose against the occurrence.

It goes without saying that in this case, occurrence took place on 27.08.2019 and statements of witnesses of ocular account i.e. Babar Tariq (injured of the case/complainant/PW-4), Farzana Kausar (PW-1) and Kiran Shahzadi (PW-3) were recorded in the year 2021; minor discrepancies do appear with the passage of time, however, no weight can be given to said discrepancies and trivial inconsistencies in the statements of the witnesses as same neither have any adverse effect nor can demolish the case of prosecution; in this regard, cases of “**SAJID MEHMOOD versus The STATE**” (2022 SCMR 1882), “**MUHAMMAD ALI and others versus**

The STATE and others” (2022 SCMR 2024) and **“MUHAMMAD ABBAS and another versus The STATE”** (2023 SCMR 487) can be safely referred.

Medical evidence in this case comprises of Dr. Ghulam Yaseen (PW-15), who medically examined Babar Tariq (injured of the case/ complainant/PW-4) and Dr. Muhammad Shazeel Khan (PW-14), who conducted postmortem examination over dead body of Muhammad Dilawar (deceased of the case) on 28.08.2019 at about 01:55 a.m. Though he (PW-14) mentioned time between injury and death as “6 to 8” hours and between death and postmortem as “16 to 26” hours yet it is relevant to mention here that in the opinion, it has been mentioned that cause of death was injuries to major pelvic organs, cavity & major blood vessels and it is worth mentioning here that when injuries have been caused to major blood vessels, then it results death without loss of much time. It goes without saying that doctor (PW-14) did not mention about rigor mortis as well as colour of wound in the postmortem examination report; relevant portion of the statement of Dr. Muhammad Shazeel Khan (PW-14) in this regard is hereby reproduced as under:-

“I have not mentioned in my postmortem examination report about the “rigor-mortis”. I have not mentioned about the colour of the wound in my PMR.”

therefore, on the one hand, time between injury and death mentioned as “6 to 8” hours is not tallying with aforementioned state of affairs i.e. injuries to major blood vessels whereas on the other hand, time between death and postmortem examination mentioned as “16 to 26” hours is not supported by any valid reason hence said opinion is *ipse dixit* i.e. without any supporting material and thus cannot be preferred over ocular account.

In above peculiar facts and circumstances of the case, postmortem examination over dead body of Muhammad Dilawar (deceased of the case) cannot be termed as unduly delayed; in this regard, guidance has been sought from the cases of **“MAJEED Masih versus The STATE”** (2022 SCMR 1675) and **“MASKEEN ULLAH and another versus The STATE and another”** (2023 SCMR 1568). Hence ocular account has been supported/ confirmed by the medical evidence.

So far as injuries No.5 and 6 observed on the body of Babar Tariq (complainant/injured of the case) by Dr. Ghulam Yaseen (PW-15) are concerned, same may be result of falling of complainant after receiving the injuries.

Even otherwise, in the case of firearm injuries, photographic view of the occurrence neither can be captured by the human eye nor can be expected from the witness because speed of bullet is more than speed of sound i.e. bullet hits first and its sound is heard subsequently by the witness, therefore, in the pandemonium situation at the time and place of occurrence, when bullets are being fired through firearm weapon at the deceased or injured/victim, then any discrepancy regarding number and locale of injuries cannot be emphasized in *stricto-sensu*; in this regard guidance has been sought from the cases of “**ABDUR RAUF versus THE STATE and another**” (2003 SCMR 522), “**NASIR AHMED versus The STATE**” (2023 SCMR 478) and “**ALI TAJ and another versus The STATE**” (2023 SCMR 900).

By now it is well settled that if ocular account is confidence inspiring, then it cannot be discarded/thrown away by the medical evidence; in this regard, guidance has been sought from the cases of “**SAJID MEHMOOD versus The STATE**” (2022 SCMR 1882), “**AZHAR HUSSAIN and another versus The STATE and others**” (2022 SCMR 1907), “**AQIL versus The STATE**” (2023 SCMR 831), “**ABDUL WAHID versus The STATE**” (2023 SCMR 1278) and “**MUHAMMAD HANIF versus The STATE**” (2023 SCMR 2016). Ocular account has been supported by the medical evidence in the case.

So far as defence version is concerned, it is pertinent to mention here that appellant during recording of his statement under Section 342 Cr.P.C. in reply to Question No. 15 “Why this case was registered against you and why the PWs deposed against you?” replied as under: -

“All the PWs deposed against me being real sisters and mother of the deceased falsely. The real sisters and mother were not present at the time of occurrence and it is evident that they did not accompany the dead body and injured while shifting them to Hospital. Even after the conduct of post mortem, the dead body was received by Muhammad Javaid and Yousaf Khan. It is an unseen occurrence and nobody knows about the real culprits. The case has been planted and managed on me with mala-fide.”

As far as aforementioned defence version of the appellant is concerned, same is mere bald negation/denial and appellant did not produce any evidence in support of the same; appellant even himself did not appear under Section: 340 (2) Cr.P.C. on oath in support of his version or/and for disproving the allegations levelled against him and even otherwise, any material is not available on the record in support of aforementioned version of the appellant. In such circumstances, when defence version is kept in juxtaposition with prosecution version, which is based upon confidence inspiring ocular account supported/confirmed by the medical evidence, then it has been found that defence version stands nowhere, however, prosecution has proved its case against the appellant beyond shadow of doubt, therefore, appellant has been rightly convicted under Sections: 302 (b), 324, 337 F (iii) and 337 F (vi) PPC; resultantly, aforementioned convictions recorded against appellant are upheld and maintained.

9. As far as question of quantum of sentence awarded to Muhammad Arif (appellant) under Sections: 302 (b) PPC is concerned, though four cartridge cases secured from the place of occurrence were found as having been fired from the pistol recovered at the pointing out of the appellant as per report of Punjab Forensic Science Agency, Lahore (Ex.PW) yet it is relevant to mention here that as per recovery memo (Ex.PK, copy whereof is available at Page No.120 of the Paper-Book), pistol along with four alive bullets was secured through sealed parcel but perusal of aforementioned report of Punjab Forensic Science Agency, Lahore (Ex.PW) does not reveal that said parcel of pistol was having four alive bullets also, which reflects that safe custody of said parcel of pistol has been compromised and not proved, which has ultimately made report of Punjab Forensic Science Agency, Lahore as inconclusive and resultantly recovery of pistol as inconsequential as well as of no help to the case of prosecution and in this regard, guidance has been sought from the dictum laid down in the cases of “MUHAMMAD SALEEM versus SHABBIR AHMED and others” (2016 SCMR 1605) and “KAMAL DIN alias KAMALA versus The STATE” (2018 SCMR 577).

Motive behind the occurrence as per *Fard Bian*/statement of Babar Tariq (complainant/PW-4) is that appellant was demanding his share from the house, started altercation in this regard, which house was in the name of paternal grandfather of the complainant, paternal grandmother of the complainant and the complainant as well as his family had been convincing Muhammad Arif (appellant) that after marriage of Iram Shahzadi and Kiran Shahzadi (sisters of the complainant), share would be given to him after selling the house and marriage of Iram Shahzadi was fixed after two months, however, appellant was adamant for the immediate sale of the house and obtaining his share; said motive is mentioned in *Fard Bian*/statement of the complainant (Ex.PA) and all witnesses have categorically stated regarding the same so it has been proved. However, it is important to mention here that appellant was suffering from ailment during days of occurrence; relevant portion from the statement of Farzana Kausar (PW-1) in this regard is hereby reproduced as under:-

“The accused was suffering from ailment during the days of occurrence.”

Babar Tariq (complainant/PW-4) also stated that on the day of occurrence, prior to the occurrence, he went along with accused Arif for his medicine and he (accused Arif) was suffering from respiratory disease and relevant portions of his statement in this regard are hereby reproduced as under:-

“On the day of occurrence, prior to the occurrence I went along with accused Arif for his medicine.”

“I have good relations with Arif prior to the occurrence.”

“Accused Arif was suffering from respiratory disease (saans lene ki bimari).”

He (complainant/PW-4) also stated before the Court during his statement that Arif (accused/appellant) asked that whether house is to be sold or not and when brother of the complainant replied that after the marriage of the sisters, property would be distributed, accused brought gun from other room and fired straight shots as well as committed the occurrence; relevant portion of his statement in this regard reads as follows:-

“My brother Dilawar, who just came out of the washroom after shower and was combing his hairs when the accused Muhammad Arif came from behind and again asked that whether the house is to be sold or not. My brother replied to him that after the marriage of the sisters the property would be distributed. The accused brought the gun from other room and fired straight shots on me which landed on my left arm

while other fire landed on my left leg. The accused then fired four consecutive shots, three of them landed at the front side at the right leg of Dilawar while fourth shot landed below the naval area.”

Two days prior to the occurrence, Dilawar (deceased of the case) and Arif (appellant) jointly went for medicine for Arif; relevant portion of the statement of Babar Tariq (complainant/PW-4) in his regard is hereby reproduced as under:-

“It is correct that two days prior to the occurrence Dilawar and accused Arif jointly went to for medicine for Arif.”

Aforementioned state of affairs i.e. Muhammad Arif (appellant) was suffering from ailment, two days prior to the occurrence, Dilawar (now deceased of the case) went along with the appellant for his medicine, when appellant asked that when house will be sold and on hearing the reply that after the marriage of the sisters of the complainant, property would be distributed, he went into the room, brought the gun and committed the occurrence, reflects that it was not premeditated occurrence rather took place under the heat of passion.

When all these factors are taken into consideration in totality then they constitute mitigating factor for reduction in quantum of sentence to the extent of offence under Section: 302 (b) PPC. Therefore, while seeking guidance from the cases of “**BAKHT MUNIR versus The STATE and another**” (2020 SCMR 588), “**GHAFFAR ALI versus The STATE and another**” (2021 SCMR 354) and “**ALI MUHAMMAD versus The STATE**” (2020 SCMR 2143) and exercising caution, sentence of “death” awarded to Muhammad Arif (appellant) by the trial Court under Section: 302 (b) PPC is converted to “**Imprisonment for Life**”; however, order passed by trial court regarding payment of compensation Rs.500,000/- under Section: 544-A Cr.P.C. by the appellant to the legal heirs of the deceased and in default thereof, to undergo S.I. for six months as well as sentences under Sections: 324, 337 F(iii) and 337 F(vi) PPC including fine, Daman & compensation amount and imprisonment in default thereof, recorded through impugned judgment are maintained/upheld. Benefit under Section 382-B Cr.P.C. shall be given to the appellant and all the sentences awarded to him except in default of payment of *Daman* & Fine, shall run concurrently.

10. In view of above, Criminal Appeal No.39441-J/2022 is **dismissed** with partial modification/reduction in sentence of the appellant as mentioned above.

Murder Reference No.163/2022 is answered in **negative** and death sentence awarded to Muhammad Arif is not confirmed.

(ALI ZIA BAJWA)
JUDGE

(FAROOQ HAIDER)
JUDGE

APPROVED FOR REPORTING

(ALI ZIA BAJWA)
JUDGE

(FAROOQ HAIDER)
JUDGE

This judgment has been dictated and pronounced on 30.06.2025 whereas after preparation, signed on 01.07.2025.

Asif